

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

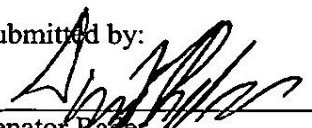
No. 1

☐ COMMITTEE AMENDMENT

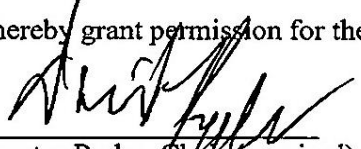
(Date)

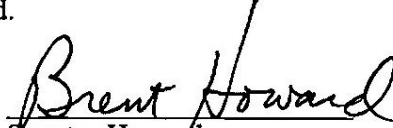
I move to amend Senate Bill No. 2053, by the attached floor substitute (Request #3747) for the title, enacting clause and entire body of the measure.

Submitted by:


Senator Rader

I hereby grant permission for the floor substitute to be adopted.

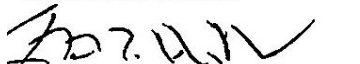

Senator Rader, Chair (required)


Senator Howard

Senator Deever

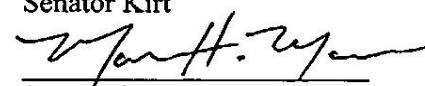

Senator Gillespie


Senator Gollitt


Senator Hall

Senator Jett

Senator Kirt


Senator Mann

Senator Sacchieri

Senator Hamilton

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor
Leader

Note: Revenue and Taxation committee majority requires six (6) members' signatures.

Rader-QD-FS-SB2053
3/23/2026 3:10 PM

(Floor Amendments Only)

Date and Time Filed: 3/24/26

11:00am

☐

Untimely

☐

Amendment Cycle Extended

☐

Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 2053

By: Rader of the Senate

and

Osburn of the House

FLOOR SUBSTITUTE

[marijuana excise tax - approval - election -
proceeds - levy period - contract - fee -
codification - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 426.2 of Title 63, unless there
is created a duplication in numbering, reads as follows:

A. In addition to the tax levied pursuant to Section 426 of
Title 63 of the Oklahoma Statutes, any county of this state may levy
a tax on retail medical marijuana sales, not to exceed ten percent
(10%) of the gross amount received by the seller.

B. The imposition of the tax authorized pursuant to subsection
A of this section shall first be approved by a majority of the
registered voters of the county voting thereon at a special election

1 called by a resolution of the board of county commissioners or by
2 initiative petition signed by not less than five percent (5%) of the
3 registered voters of the county who were registered at the time of
4 the last general election. Provided, if a majority of the
5 registered voters of a county voting fail to approve the tax, the
6 board of county commissioners shall not call another special
7 election for such purpose for six (6) months. Any tax levied or any
8 change in the rate of a tax levied pursuant to the provisions of
9 this section shall become effective on the first day of the calendar
10 quarter following approval by the voters of the county unless
11 another effective date, which shall also be on the first day of a
12 calendar quarter, is specified in the ordinance or resolution
13 levying the tax or changing the rate of tax.

14 C. Any tax which may be levied by a county pursuant to the
15 provisions of this section shall be designated for public safety and
16 infrastructure. The proceeds of any tax levied by a county pursuant
17 to the provisions of this section shall be deposited in a public
18 safety and infrastructure revolving fund of the county.

19 D. The tax may be limited or unlimited in duration. The county
20 shall identify the duration of the tax when it is presented to the
21 voters pursuant to the provisions of subsection B of this section.

22 E. Any tax levied by a county pursuant to the provisions of
23 this section shall be paid by the consumer to the seller. The board
24 of county commissioners and the Oklahoma Tax Commission shall enter

1 into a contract whereby the Tax Commission shall have authority to
2 assess, collect, and enforce the tax, and any penalties or interest
3 thereon, levied by such county, and to remit the same to the county.
4 Such assessment, collection, and enforcement authority shall apply
5 to any tax, and any penalty or interest liability existing at the
6 time of contracting. Upon contracting, the Tax Commission shall
7 have the power of enforcement of the tax, and any penalties or
8 interest that are vested in the county. The contract shall provide
9 for the assessment, collection, and enforcement of the tax, and the
10 penalties or interest, in the same manner as the administration,
11 collection, and enforcement of the tax levied pursuant to Section
12 426 of Title 63 of the Oklahoma Statutes by the Tax Commission. For
13 providing such collection assistance, the Tax Commission shall
14 charge the county a fee of one-half of one percent (0.5%) of the
15 gross collection proceeds.

16 SECTION 2. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 2707 of Title 68, unless there
18 is created a duplication in numbering, reads as follows:

19 A. The governing body of any incorporated city or town in this
20 state may levy and assess, pursuant to Section 2701 of Title 68 of
21 the Oklahoma Statutes, an excise tax, not to exceed ten percent
22 (10%), upon the gross receipts derived from the sale of medical
23 marijuana and medical marijuana products for the purposes of funding
24 public safety and infrastructure. Provided, no municipality shall

1 levy an excise tax rate that would cause the combined county and
2 municipality tax rate, as authorized pursuant to this section and
3 Section 1 of this act, to exceed fifteen percent (15%).

4 B. Before the excise tax may be levied by the municipality, the
5 imposition of the tax shall first be approved by a majority of the
6 registered voters of the municipality voting thereon at a special
7 election called by the city council or by initiative petition signed
8 by not less than five percent (5%) of the registered voters of the
9 municipality who were registered at the time of the last general
10 election. However, if a majority of the registered voters of a
11 municipality voting fail to approve such a tax, the city council
12 shall not call another special election for such purpose for six (6)
13 months. Any tax levied or any change in the rate of a tax levied
14 pursuant to the provisions of this section shall become effective on
15 the first day of the calendar quarter following approval by the
16 voters of the municipality unless another effective date, which
17 shall also be on the first day of a calendar quarter, is specified
18 in the ordinance or resolution levying the tax or changing the rate
19 of tax.

20 C. Any tax which may be levied by a municipality pursuant to
21 the provisions of this section shall be designated for public safety
22 and infrastructure. The proceeds of any tax levied by a
23 municipality pursuant to the provisions of this section shall be
24

1 deposited in a public safety and infrastructure revolving fund of
2 the municipality.

3 D. The tax may be limited or unlimited in duration. The
4 municipality shall identify the duration of the tax when it is
5 presented to the voters pursuant to the provisions of subsection B
6 of this section.

7 E. Any tax levied by a municipality pursuant to the provisions
8 of this section shall be paid by the consumer to the seller. The
9 city council and the Oklahoma Tax Commission shall enter into a
10 contract whereby the Tax Commission shall have authority to assess,
11 collect, and enforce the tax, and any penalties or interest thereon,
12 levied by such municipality, and to remit the same to the
13 municipality. Such assessment, collection, and enforcement
14 authority shall apply to any tax, and any penalty or interest
15 liability existing at the time of contracting. Upon contracting,
16 the Tax Commission shall have the power of enforcement of the tax,
17 and any penalties or interest that are vested in the municipality.
18 The contract shall provide for the assessment, collection, and
19 enforcement of the tax, and the penalties or interest, in the same
20 manner as the administration, collection, and enforcement of the tax
21 levied pursuant to Section 426 of Title 63 of the Oklahoma Statutes
22 by the Tax Commission. For providing such collection assistance,
23 the Tax Commission shall charge the municipality a fee of one-half
24 of one percent (0.5%) of the gross collection proceeds.

SECTION 3. This act shall become effective November 1, 2026.

60-2-3747 QD 3/24/2026 11:21:12 AM